

STATE OF NEW YORK

1186--A

Cal. No. 301

2025-2026 Regular Sessions

IN SENATE

January 8, 2025

Introduced by Sens. ADDABBO, COMRIE, MYRIE, RAMOS -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the administrative code of the city of New York, in relation to requiring the New York city department of transportation to provide notice to schools of certain construction projects

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The administrative code of the city of New York is amended by adding a new section 19-101.5 to read as follows:

§ 19-101.5 Notification of schools of construction work. a. No later than fourteen days prior to the commencement of any construction project to be undertaken by the department within three hundred feet of any building operated by the city school district of the city of New York or a nonpublic school or charter school located within the city of New York where such building is used for student instruction, the department shall provide written notice to such school district or such nonpublic school or charter school. Such written notice shall include a description of location of such construction. No written notice shall be required pursuant to this section when the commencement of a construction project is in response to an emergency.

b. (i) The term "construction" as used in this section means the erection, building, or substantial acquisition, alteration, reconstruction, improvement, extension or modification, including public utility improvements, of a highway, sidewalk or appurtenance thereof.

(ii) The term "emergency" as used in this section means a situation involving danger to life, safety or property which requires immediate

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD01915-03-5

1 action, is essential to efficient operation or the adequate provision of
2 service by a municipality, school district, nonpublic school or the
3 state, and is a direct consequence of an accident or other unforeseen
4 circumstance.

5 § 2. This act shall take effect on the ninetieth day after it shall
6 have become a law.